

24VECV04770 24VECV04770

County: los-angeles

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24VECV04770 SOEBROTO v. FORD MOTOR
COMPANY, et al.

September 8, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion for Order to Depose Defendant in Prison

I.

Background

This is a wrongful death action arising out of the two-vehicle crash that occurred on November 22, 2022, resulting in the deaths of Andrea Bullo and Marco Bullo ("Decedents"). On September 26, 2024, Plaintiff Enie Irawati Soebroto, individually and as Successor-in-Interest to Decedents ("Plaintiff") filed a Complaint against Defendants Ford Motor Company ("FMC"); Kevin Ivan Gonzales ("Gonzales"); and DOES 1 through 100 (collectively, "Defendants"), alleging causes of action for: (1) Strict Product Liability; (2) Negligence; and (3) Breach of Express Warranty.

On October 11, 2024, Plaintiff filed a First Amended Complaint ("FAC") adding a fourth cause of action for Motor Vehicle Negligence.

On December 12, 2024, FMC filed an Answer to the FAC.

On January 14, 2025, Plaintiff and FMC filed a Stipulation and Order for Plaintiff to file a Second Amended Complaint ("SAC"). On January 16, 2025, Plaintiff filed the operative SAC against Defendants, alleging causes of action for: (1) Strict Product Liability; (2) Negligent Products Liability; and (3) Motor Vehicle Negligence.

On February 18, 2025, FMC filed an Answer to the SAC.

On August 3, 2026, FMC filed the instant Motion for Order to Depose Defendant Kevin Gonzales in Prison. Any opposition would have been due on August 25, 2026. To date, no opposition has been filed.

II. Discussion

"If in a civil action or special proceeding a witness be a prisoner, confined in a state prison within this state, an order for the prisoner's examination in the prison by deposition may be made.

1. By the court itself in which the action or special proceeding is pending, unless it be a small claims court.

2. By a judge of the superior court of the county where the action or proceeding is pending, if pending before a small claims court or before a judge or other person out of court.

Such order can only be made on the motion of a party, upon affidavit showing the nature of the action or proceeding, the testimony expected from the witness, and its materiality. The deposition, when ordered, shall be taken in accordance with Section 2622." (Pen. Code, § 2623.)

California Penal Code Section 2622

provides that, "When the order for personal appearance is not made pursuant to Section 2620 or Section 2621 the deposition of the prisoner may be taken in the manner provided for in the case of a witness who is sick, and Chapter 4 (commencing with Section 1335) of Title 10 of Part 2 shall, so far as applicable, govern in the application for and in the taking and use of that

deposition.” (Pen. Code, § 2622.) This is because “a prisoner may not be deprived, by his or her inmate status, of meaningful access to the civil courts if the prisoner is both indigent and a party to a bona fide civil action threatening his or her personal or property interests.” (Hulbert v. Cross (2021) 65 Cal.App.5th 405, 413.) “Remedies to secure access may include: (1) deferral of the action until the prisoner is released; (2) appointment of counsel for the prisoner; (3) transfer of the prisoner to court; (4) utilization of depositions in lieu of personal appearances; (5) holding of trial in prison; (6) conduct of status and settlement conferences, hearings on motions and other pretrial proceedings by telephone; (7) propounding of written discovery; (8) use of closed circuit television or other modern electronic media; and (9) implementation of other innovative, imaginative procedures.” (Wantuch v. Davis (1995) 32 Cal.App.4th 786, 792–793 [internal citations omitted].)

FMC moves for an order permitting the deposition of Gonzales in prison on the grounds that a court order is required before taking the deposition of a prisoner incarcerated in a California state prison, who is involved in a civil matter. The Court agrees.

Although Gonzales has not made a general appearance in this instant action, Plaintiff does seek general and special damages against Gonzales under the third cause of action alleged against him in the SAC. (See SAC, ¶102; SAC, Prayer for Relief, ¶¶1-2.) California Penal Code Sections 2622 and 2623 work in tandem to provide incarcerated individuals with meaningful access to civil courts if a civil matter is threatening their personal interests. One such remedy is the utilization of depositions in lieu of personal appearances, which is the remedy sought by FMC. This remedy is only available via court order sought via a noticed motion and supporting affidavit.

Here, FMC submits an affidavit demonstrating that Gonzales’ deposition testimony is critical to FMC’s defense against the first and second causes of action alleged against it in the SAC. Specifically, Gonzales was the driver of the other vehicle involved in the fatal vehicle collision, which resulted in the deaths of the Decedents. (Adams Decl., ¶2.) Gonzales was arrested at the scene by the Los Angeles Police Department. (Id., ¶3.) A subsequent toxicology test revealed that Gonzales had a blood alcohol concentration more than double the California legal limit and THC in his system. (Id.) Gonzales later pled no contest to two counts of felony gross vehicular manslaughter while intoxicated under

California Penal Code Section 191.5, subdivision (a) and is currently serving a 12-year prison sentence. (Id., ¶4.) Essentially, Gonzales' incarceration is the direct result of his involvement in the vehicle collision at issue in this lawsuit. The scope of the deposition is to elicit testimony about Gonzales' role in the vehicle collision, observations at the accident scene, his actions leading up to and after the accident, his subsequent arrest, and his no contest plea. (Adams Decl., ¶6.)

III.

Conclusion

Accordingly, Defendant Ford Motor Company's Motion for Order to Depose Defendant Kevin Gonzales in Prison is GRANTED. The Court will sign the proposed Order.

Defendant Ford Motor Company to give notice.